

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/07/08/2022.

Date: 10th August 2022.

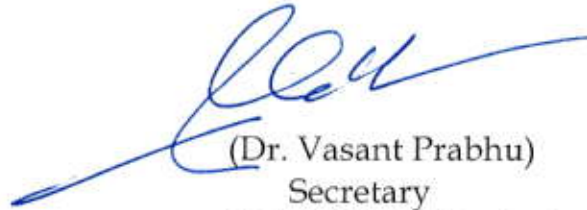
To,
The Collector, Mumbai Suburban,
Office of Collector,
Administrative Building,
9th floor, Government Colony,
Opp. Chetana College,
Bandra (East), Mumbai-400 051

Sub: Execution of the warrant under Section 40(1) of RERA in Complaint No. CC006000000057025 filed by **ARUNA SUBRATO BANERJEE Vs. Vidhi Relators in Project No. P51800007949.**

Sir,

I am forwarding the recovery warrant under Section 40(1) of RERA & for its execution. You are requested to look into the matter personally and get the warrant executed at the earliest. On realization of the amount, you are requested to inform us.

Yours faithfully,



(Dr. Vasant Prabhu)

Secretary
MahaRERA, Mumbai.

Encl.: Warrant with
necessary papers.

Details of the attachable assets to be required u/s 17/2 of Maharashtra Realization of Land Revenue Rules 1967. When Revenue Recovery Certificate is under the provision of Revenue Recovery Act 1890.

No. MahaRERA/VH/WARRANT/07/08/2022.

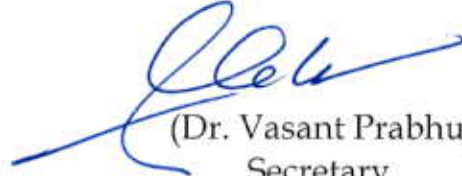
Date: 10th August 2022.

1.	Name and address of the firm: -	ARUNA SUBRATO BANERJEE A-204, NATRAJ, SHIVAJI ROAD, SHIVDHAM COMPLEX, SIBBU PALACE, Ambarnath - 421501. Mobile No.- +91- 9890055162 Email ID: - bkarunabanerjee@gmail.com
2.	The sum to be recovered.	Refund of amount of Rs. 6,56,471/- including balance consideration of Rs. 4,99,875/- along with the interest calculated till June 2022 at 9% pa. along with further applicable interest till full refund of the amount to the complainant.
3.	The provision of law under which the R.R.C. is sent to recover the sum as in arrears of Land Revenue.	Recovery warrant u/s 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeals, etc.) Rules, 2017.
4.	No. & Date of order under which amount is ordered to be recovered.	Complaint No.: CC006000000057025 Final Order dated: 5 th February 2019
5.	Full name and address of the defaulter with name of the building, room no., road name, village name/town, taluka, Dist. Pin Code No.	Vidhi Relators. PAN No.- AAFV4222J 76, Laxmi Palace, Mathurdas Road, Kandivali West, Near Kopol Bank, Mumbai - 400067. Mr. Ketan Tokershi Shah (Authorized Signatory)

		701, Hemlok CHS Ltd., Kilachand Road, Near Shoperstop, Kandivali West, Mumbai - 400067. Details of Contact Person: - Jinam Shah - Legal Mobile No.- +91- 9833509427 Email ID: - rg_rera@ravigroup.in
6.	Full details of the property of defaulter against which the process may be executed.	The flat bearing no. 0504, F Wing, in the Project known as "Gaurav Discovery" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. 2841 pt at Borivali - 400097. a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800007949. b) Other apartments which are still not booked and not mortgaged to any Financial Institutions /Bank. Note: Land on which the project is being implemented, apartments that are already booked with other allottees and apartments that are mortgaged to Financial Institutions/Banks should not be attached so that the project can be completed.
7.	Immovable property: a) Name of the building House/Building. b) Room No. c) Name of the village/town d) Road name/gally name e) Sr. No./ II No. of the property f) Area of the property in square meters	c) If by attaching the property mentioned in 6 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the

	g) CTS No. of the property area of the property.	procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.
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Mumbai
Date: 10th August 2022


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/07/08/2022.

Date: 10th August 2022.

Recovery Warrant U/s. 40(1) of Real Estate

(Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

Complaint No.: CC006000000057025

Project No: P51800007949

ARUNA SUBRATO BANERJEE

--- Complainants.

Versus

Vidhi Relators

--- Respondent.

To,
The Collector, Mumbai Suburban,
Office of Collector,
Administrative Building,
9th floor, Government Colony,
Opp. Chetana College,
Bandra (East), Mumbai-400 051

Whereas the above-named complainant has filed the above complaint No. CC006000000057025, and the Authority/ Adjudicating Officer passed the enclosed order wherein the complaint was disposed of in view of the consent terms filed by the parties.

And whereas the respondent has failed to comply with the said consent terms.

And whereas the respondent has failed to comply with the order.

And whereas the amount ordered is recoverable from the respondents as an arrears of land revenue by virtue of Section 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation

and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

You are hereby directed to recover the ordered amount from the respondent as the arrears of land revenue and pay it to the complainant and report the compliance.

The necessary information is:

1) Name of complainant with his address:

ARUNA SUBRATO BANERJEE

A-204, NATRAJ, SHIVAJI ROAD, SHIVDHAM COMPLEX, SIBBU PALACE, Ambarnath - 421501.

Mobile No.- +91- 9890055162

Email ID: - bkarunabanerjee@gmail.com

2) Name of respondents/promoters/directors/partners with their addresses:

Vidhi Relators.

PAN No.- AAFFV4222J

76, Laxmi Palace, Mathurdas Road, Kandivali West, Near Kapol Bank, Mumbai - 400067.

Mr. Ketan Tokershi Shah - (Authorized Signatory)

701, Hemlok CHS Ltd., Kilachand Road, Near Shoperstop, Kandivali West, Mumbai - 400067.

Details of Contact Person: - Jinam Shah - Legal

Mobile No.- +91- 9833509427

Email ID: - rg_rera@ravigroup.in

3. Name of the project & its location:

The flat bearing no. 0504, F Wing, in the Project known as "Gaurav Discovery" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. 2841 pt at Borivali - 400097

- a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800007949.
- b) Other apartments which are still not booked and not mortgaged to any Financial Institutions/Bank.

Note: Land on which the project is being implemented, apartments that are already booked with other allottees and apartments that are mortgaged to Financial Institutions/Banks should not be attached so that the project can be completed.

4) Particulars of immovable property and any other movable and immovable property:

- a) If by attaching the property mentioned in 3 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.

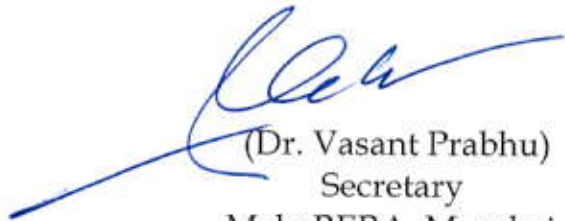
5) Amount to be refunded:

Refund of amount of Rs. 6,56,471/- including balance consideration of Rs. 4,99,875/- along with the interest calculated till June 2022 at 9% pa. along with further applicable interest till full refund of the amount to the complainant.

6) Enclosures:

- i) Final order dated. 5th February 2019.
- ii) Order of Non-compliance dated 24th June 2022.
- iii) Interest calculation submitted by the complainants by email.

Mumbai
Date: 10th August 2022


(Dr. Vasant Prabhu)
Secretary
MahaRERA, Mumbai

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY
AUTHORITY, MUMBAI
NON-COMPLIANCE APPLICATION**

In

COMPLAINT NO: CC006000000057025

ARUNA SUBRATO BANERJEE

.... Complainant

Versus

VIDHI REALTORS

.... Respondent

MahaRERA Registration No. P51800007949

Coram: Dr. Vasant Prabhu, Secretary, MahaRERA

Adv. Shreejit Singh appeared for the complainant.

None appeared for the respondent.

Order

24th June 2022

(Through Video Conferencing)

1. The Complainant has filed this present application for non-compliance of the MahaRERA Order dated 5th February 2019 in Complaint no: CC006000000057025 (hereinafter referred to as the said complaint) by the Respondent.
2. In the said complaint filed by the complainant, the complaint was disposed of as settled in view of the consent terms filed by the parties.
3. On the said non-compliance application, the hearing was held today through video conferencing as per MahaRERA Circular no. 27/2020 and MahaRERA Order No. 15/2020.
4. During the hearing, the complainant submitted that, the parties had settled the matter amicably and consent terms were filed by

the parties. As per the consent terms, the respondent was supposed to refund the complainant's amount. However, the consent terms have not been complied by the respondent. The complainant therefore sought action against the respondent under section 40(1) of RERA.

5. The respondent did not appear for the hearing even though the notice of hearing was duly served upon it. Hence the complainant is entitled to seek issuance of warrant under section 40(1) of RERA.
6. From the above, it is clear that the respondent has failed to comply with the order and refund the complainant's amount. Any further time granted to the respondent would lead to injustice to the complainants.
7. Therefore, as per the request of the complainant, the MahaRERA has no alternative but to proceed with action under section 40 (1) of RERA against the respondent. It is therefore directed to issue recovery warrant under section 40(1) of RERA read along with rule 3 of the Maharashtra Real Estate (Regulation & development) (Recovery of Interest, Penalty, Compensation, Fine Payable, Forms of Complaint & Appeals etc.) rules, 2017, against the booked flat in the said project of the respondent.
8. In view of the above, the application of non-compliance stands disposed of.


(Dr. Vasant Prabhu)
Secretary, MahaRERA

Complaint No. CC006000000057025 of 2018

Complainant Name- Aruna Banerjee

Consent Term filed on 05/02/2019

Payment Schedule

AS PER CONSENT TERM		ACTUAL RECEIVED				
DATE	AMOUNT (In Rs.)	DATE	AMOUNT(In Rs.)	Balance (C)	Interest(9% till June, 2022(D)	Total Recievable (C+D)
28/02/2019	1,75,975/-	19/03/2019	1,75,975/-	-----	-----	-----
31/03/2019	1,75,975/-	23/08/2019	50,000/-	1,25,975/-	38,723/-	1,64,698/-
30/04/2019	1,75,975/-	28/08/2019	50,000/-	1,25,975/-	37,403/-	1,63,378/-
31/05/2019	1,75,975/-	19/11/2019	1,00,000/-	75,975/-	25,583/-	1,01,558/-
30/06/2019	1,75,975/-	27/01/2020	1,00,000/-	75,975/-	25,763/-	1,01,738/-
31/07/2019	1,75,975/-	16/09/2020	1,00,000/-	75,975/-	29,124/-	1,05,099/-
Cost	20,000/-		-----	20,000/-	-----	20,000/-
TOTAL RECIEVABLE	10,55,848/-	RECIEVED	5,75,975/-	4,99,875/-	TOTAL	6,56,471

THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY
MUMBAI.

COMPLAINT NO: CC006000000057025.

Aruna Subrato Banerjee

... Complainant.

Versus

Vidhi Realtors
(Gaurav Discovery)

... Respondents.

MahaRERA Regn: P51800007949.

Coram: Shri B.D. Kapadnis,
Hon'ble Member & Adjudicating Officer.

Appearance:

Complainants: In person.

Respondents: Adv. Krishna Agarwal.

FINAL ORDER
5th February 2019.

Parties have settled their dispute amicably and they have filed consent terms marked Exh. 'A'.

2. The complaint stands disposed off as settled.

Mumbai.

Date: 05.02.2019.


5.2.19
(B. D. Kapadnis)
Member & Adjudicating Officer,
MahaRERA, Mumbai.